

Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admission to the Full Time Professional Undergraduate Technical Courses) Rules, 2017

Source: <https://indiankanoon.org/doc/71822528/>

Skip to main content

Legal Document View

Tools for analyzing structure and cite text of judgments

Unlock Advanced Research with

PRISM

AI

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

Know your Kanoon

-

Doc Gen Hub

-

Counter Argument

-

Case Predict AI

-

Talk with IK Doc

-

...

Upgrade to Premium

[Cites

0

, Cited by

0

]

State of Maharashtra - Act

Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admission to the Full Time Professional Undergraduate Technical Courses) Rules, 2017

MAHARASHTRA

India

Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admission to the Full Time Professional Undergraduate Technical Courses) Rules, 2017

Rule

MAHARASHTRA-UNAIDED-PRIVATE-PROFESSIONAL-EDUCATIONAL-INSTITUTIONS-REGULATION-OF-ADMISSION-TO-THE-FULL-TIME-PROFESSIONAL-UNDERGRADUATE-TECHNICAL-COURSES-RULES-2017 of 2017

Published on 24 April 2017

Commenced on 24 April 2017

[This is the version of this document from 24 April 2017.]

[Note: The original publication document is not available and this content could not be verified.]

Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admission to the Full Time Professional Undergraduate Technical Courses) Rules, 2017

Published vide Notification No. TEM-2016/CR 473/16n(Part-3)/TE-4, dated 24.4.2017

No. TEM-2016/CR 473/16n(Part-3)/TE-4. - In exercise of the powers conferred by section 23 of the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) Act, 2015 (Maharashtra XXVIII of 2015), and in supersession of Government Notification, Higher and Technical Education Department, No. TEM-2015/CR 536/TE-4, dated 11th March 2016, the Government of Maharashtra hereby makes the following rules to regulate the admissions to the First and Direct Second Year of Full Time Professional Undergraduate Technical Courses (Engineering and Technology, Pharmacy, Architecture and Hotel Management and Catering Technology), namely :-

1.

Short title and commencement.

(1)

These rules may be called the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admission to the Full Time Professional Undergraduate Technical Courses) Rules, 2017.

(2)

They shall come into force with effect from 24th April 2017.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Maharashtra Unaided Private Professional Educational Institutions (Regulation of Admissions and Fees) Act, 2015 (Maharashtra Act XXVIII of 2015) ;

(b)

"Admission Reporting Centre" means a center where the Candidate shall report for confirmation of admission by verification of documents and payment of fees ;

(c)

"All India Seats" means seats available to an eligible Indian National Candidate ;

(d)

"Application Form" means prescribed form filled up online by the Candidate for admission ;

(e)

"Autonomous Institution" means the institution to which autonomy is granted by the University Grants Commission ;

(f)

"CAP Seats" means the seats filled in through the centralized process of admission carried out by the Competent Authority ;

(g)

"Courses" means the full time undergraduate technical courses in Engineering and Technology, Pharmacy, Architecture and Hotel Management and Catering Technology ;

(h)

"Department" Means the Higher and Technical Education Department of Government of Maharashtra ;

(i)

"Eligible Candidates" means the candidates who are eligible for different professional courses as notified by the Government, from time to time under sub-section (1) of section 3 of the Act ;

(j)

"Facilitation Centre" means a Centre where the facilities like sale of application kits, filling online forms, verification of documents and grievances, etc., are provided ;

(k)

"Home University (HU)" means the university area as specified in sub rule (1) of rule 5 herein ;

(l)

"HSC" means the Higher Secondary School Certificate (Standard XII) examination conducted by the Maharashtra State Board of Secondary and Higher Secondary Education or its equivalent certificate awarded by a recognized Board ;

(m)

"Institutional Quota" means seats available for admission to eligible Candidates at Institution level as declared by the Government or appropriate authority, from time to time ;

(n)

"Inter-Se-Merit" means the order of merit declared by the Competent Authority in respect of various classes or category of Candidates ;

(o)

"JEE Main" means the Joint Entrance Examination conducted by the Central Board of Secondary Education, New Delhi for the concerned academic year ;

(p)

"Minority Quota" means seats earmarked for the Minority Community students from within the State, belonging to the Minority Community to which the institution belongs ;

(q)

"Non-Autonomous Institution" means those institutions which are not 'Autonomous Institutions' ;

(r)

"OHU" means the area Outside Home University area ;

(s)

"Overseas Citizen of India (OCI)" means a candidate or a person registered as an Overseas Citizen of India as declared by the Central Government under section 7A of the Citizenship Act, 1955 and includes Persons of Indian Origin (PIO) ;
Explanation. - For the purposes of this clause, all the existing Persons of Indian Origin (PIO) cardholders registered under notification of the Government of India, Ministry of Home Affairs No. F. No. 26011/04/98- F. I, dated 19th August 2002 and shall now be deemed to be Overseas Citizen of India (OCI) card holders by virtue of Notification of Government of India, Ministry of Home Affairs, No. 25024/9/2014-F.I, dated 9th January, 2015 ;

(t)

"Qualifying Examination" means examinations on the basis of which a candidate becomes eligible for admission or its equivalent examination ;

(u)

"SSC" means the Secondary School Certificate (Standard X) examination conducted by the Maharashtra State Board of Secondary and Higher Secondary Education or its equivalent certificate awarded by a recognized Board ;

(v)

"Supernumerary Seats" means seats which are over and above the Sanctioned Intake approved by the appropriate authority and the Government, from time to time.

(2)

Words and expressions used but not defined in these rules, shall have the same meanings respectively assigned to them in the Act.

3.

Invitation of Application.

(1)

The Competent Authority shall invite Online Applications from Candidates for participating in CET and/or CAP for seeking admission to the Professional Courses for which State CET or alternative entrance examination is required for the academic year.

(2)

The Competent Authority shall invite online applications in the prescribed form, from the eligible candidates for participating in Centralized Admission Process (CAP) for seeking admission to the undergraduate technical courses, which are exempted from CET as per provisions of the act.

(3)

The Competent Authority shall also invite online application from the eligible candidates for participating in the Centralised Admission Process (CAP) for the undergraduate technical courses for which the entrance test is conducted by the appropriate authority under any Central Act and shall be applicable, for seeking admission to such professional courses, as per the provisions of the Central Act, rules and regulations made thereunder.

(4)

The Candidates seeking admissions to the professional courses for the seats provided in-

(a)

rule 7(1),7(2), 7(3) and 7(5)(b) of these rules shall apply to the Competent Authority for admission through Centralized

Admission Process(CAP),

(b)

rule 7(4) and 7(5) (a) of these rules shall initially apply to the Competent Authority for verification of documents and then to respective institute, to enable the institutions to give admissions to such eligible applicants on the basis of Inter-Se-Merit, as specified in rule 13.

(5)

The Candidate should submit, along-with the application, the requisite certificates, as applicable in the necessary Proforma issued by the concerned competent authority.

4.

Declaration of Medium, Pattern, Syllabus, Schedule, etc. of CET and CAP.

(1)

The Competent Authority shall, in relation to Common Entrance Test (CET), declare:-

(a)

Medium of CET;

(b)

Pattern of CET;

(c)

Mode of CET;

(d)

Schedule of CET;

(e)

Issue of Hall Ticket;

(f)

Result of CET ;

(g)

Schedule of CAP, etc.

(2)

The Competent Authority shall also declare the Syllabus relating to CET in consultation with the Director of Technical Education.

(3)

The Concerned Directorate shall publish the "Information Brochure".

5.

Candidature Type.

-

(1)

Maharashtra State Candidature. -

Type

Eligibility Criterion

Home University

(1)

(2)

(3)

A

(a) For First Year :-

(i) Candidates passing SSC and also HSC or Diploma in Engineering or Bachelor of Science Examination from a recognized institution in Maharashtra State ;

Place of passing of Qualifying Examination falling within the jurisdiction of the respective University area.

(ii) Candidate who is either domicile of

Maharashtra and/or is born in Maharashtra ;

(b) For Direct Second Year :-

(i) (1) For Engineering.- Candidates passing SSC or HSC and also Diploma in Engineering or Technology or Bachelor of Science or its equivalent from a recognized institution in Maharashtra State ;

(2) for Pharmacy.-Candidates passing HSC and Diploma in Pharmacy from a recognized institution in Maharashtra State ;

(ii) Candidate who is either domicile of Maharashtra and/or is born in Maharashtra.

B

A Candidate who does not fall in Type A above, but who or whose father or mother is domiciled in the State of Maharashtra and possesses domicile certificate. Place of domicile Certificate issuing authority falling within the jurisdiction of the respective University area.

C

A Candidate who does not fall in either Type A or Type B but whose father or mother is an employee of the Government of India or Government of India Undertaking and who has been posted and reported to duty in Maharashtra State before the last date for submitting the Application Form for CAP. Place of posting of father or mother of Candidate falling within the jurisdiction of the respective University area.

D

A Candidate who does not fall in any of the above Type A, Type B and Type-C but whose father or mother is an employee or retired employee of the Government of Maharashtra or Government of Maharashtra Undertaking. Place of posting of father or mother of Candidate or the place of settlement of the father or mother if retired or the place of last posting if deputed outside Maharashtra falling within the jurisdiction of the respective University area

E

(a)For First Year- Candidates passing SSC and/or HSC Examination from a recognized institution located in a disputed Maharashtra Karnataka Border area or from Maharashtra, residing in the disputed Maharashtra-Karnataka Border area and whose mother tongue is Marathi. Candidate shall be considered for the Outside Home University or State Level Seats.

(b)For Direct Second Year- Candidates passing SSC and/or HSC Examination and also Diploma in Engineering and Technology or Pharmacy or its equivalent from a recognized institution from a Disputed Maharashtra- Karnataka Border area or from Maharashtra, residing in the disputed Maharashtra-Karnataka Border area and whose mother tongue is

Marathi.

(2)

All India Candidature. - The Candidates having Indian Nationality are eligible under this Category.

(3)

Minority Candidature. - The Maharashtra domiciled Candidate belonging to a particular linguistic or religious minority community from within the State and as notified by the Government are eligible under this Category.

(4)

NRI Candidature. - The Candidate who fulfills the conditions as defined in clause (n) of section 2 of the Act are eligible under this Category.

(5)

Foreign Student or OCI or PIO Candidature. - The Foreign Student Candidates, as defined in clause (i) of section 2 of the Act, the Overseas Citizen of India (OCI) candidate, as defined in clause (s) of rule 2 and Persons of Indian Origin (PIO) as defined in clause (o) of section 2 of the Act are eligible under this Category.

(6)

Jammu and Kashmir Migrant Candidature. - (a) The children of citizens, who are displaced from Jammu and Kashmir to any part of India or from unsafe border area of Jammu and Kashmir to a relatively safer place in Jammu and Kashmir from 1990 onwards due to terrorist activities; or

(b)

The children of officers belonging to Indian Administrative Services (IAS) or Indian Police Services (IPS) or Indian Foreign Services (IFS) and children of staff belonging to military and Type Eligibility Criterion Home University (1) (2) (3) paramilitary forces transferred to Jammu and Kashmir to combat terrorist activities and joined the post on or before the last date for submission of application for admission; or

(c)

The children of staff and officers of Jammu and Kashmir police engaged in combating terrorism, are eligible under this category;

6.

Sanctioned Intake and Supernumerary Seats for various Courses.

(1)

The Sanctioned Intake for First Year Degree Course and Direct Second Year (Lateral entry) separate division Degree Courses shall be as per the approval given by the authority which is competent for giving approval to respective courses and affiliation given by the respective affiliating University. For admission to Direct Second Year (Lateral entry) of Undergraduate courses, the number of seats available shall be calculated as given in Schedule-II.

(2)

The supernumerary seats shall be available to the Private Professional Educational Institutions as approved by the appropriate authority, from time to time.

7.

Allocation of Seats.

- The percentage of allocation of seats for various types of candidates in the Home University, Other than Home University and at State level shall be in accordance with the policy of the Government as specified in Schedule-I for First Year and in Schedule -II for Direct Second Year of various under graduate courses.

(1)

Maharashtra State Candidature Seats. - The Candidates having Maharashtra State Candidature as specified in rule 5(1) of these rules, shall be eligible for these seats.

(2)

All India Candidature Seats. - The Candidates having Candidature as given in rule 5(2) of these rules shall be eligible for these seats.

(3)

Minority Quota Seats. - The Candidates having Candidature mentioned in rule 5(3) of these rules shall be eligible for these seats as specified in Schedule-I and Schedule-II. These seats shall be filled in accordance with the provisions of sub-section (2) of section 6, of the Act.

(4)

Institutional Quota Seats. - The Institution can admit Eligible Candidates as specified in Schedule-I and Schedule -II, subject to following conditions,-

- (i)
the Candidates having Candidature mentioned in rule 5(1), 5(2) 5(3), 5(4) and 5(6) of these rules shall be eligible for these seats ;
- (ii)
the maximum 5% seats may be filled in from the NRI Candidates, if it is approved by the appropriate authority, at the Institution level ;
- (iii)
if the seats reserved for this NRI quota remains vacant, those vacant seats may be filled in by the Institution, from the Eligible Candidates of All India Candidature seats :
Provided that while filling of these vacant seats the preference shall be given to the Maharashtra State Candidature Candidates on the basis of Inter-Se-Merit.

- (5)
Supernumerary Seats for - (a) OCI/PIO, Foreign Students and the children of Indian Workers in Gulf Countries Candidates. - (i) The Candidates having Candidature as given in rule 5(5) of these rules and the children of Indian Workers in Gulf Countries shall be eligible for these supernumerary seats;
- (ii)
these seats shall be subject to the maximum of 15% of the Sanctioned Intake seats. Out of 15% seats, one third shall be reserved for the children of Indian Workers in Gulf Countries and two third seats shall be reserved for OCI/PIO or Foreign Students candidates or as prescribed by the appropriate authority, from time to time;
- (iii)
these seats shall be filled in by the institution on the basis of Inter-Se-Merit of candidates as given in rule 8 of these rules.

- (b)
Jammu and Kashmir Migrant Candidature. - (i) The Candidates having Candidature as given in rule 5(6) of these rules shall be eligible for these seats ;
- (ii)
The number of seats for this quota shall be as per the policy of the Government ;
- (iii)
These seats shall be filled in by the Competent Authority.

8.

Preparation of Merit List.

- (1)
Assignment of merit number.- All the eligible Candidates who have submitted Application Form on or before the last date specified for the submission of Application Form for Admission through CAP shall be assigned a merit number. The merit list shall be prepared on the basis of CET score or on the basis of marks obtained at qualifying examination, or any other criterion as specified in sub-rule (3) of this rule.
- (2)
Change of Marks due to verification.-If the marks in the qualifying examination are modified due to verification and the same is duly certified by the concerned Competent Authority or Board, the same shall be reported to the Competent Authority for admission through CAP or its designated representatives immediately. However, the effect of such change will be taken into consideration only for the subsequent round (s-) of admission.

- (3)
Assignment of Merit Number for various Courses.-(a)For admission to First Year Engineering and Technology.-
- (i)

For HSC Candidates.- The merit list for the Candidates as per rule 5(1), 5(2), 5(3) and 5(6) of these rules, shall be prepared on the basis of marks or score secured by the Candidate in the CET conducted by the Competent Authority or marks or score secured in any other examination conducted by the concerned appropriate authority for the purpose of admission to these Courses :

Provided that, in case of tie, the relative merit of Candidates shall be resolved in the following order of preference and

the methodology as specified below,-

- (a)
higher marks in Mathematics at CET ;
- (b)
higher marks in Physics at CET ;
- (c)
higher percentage of marks in Board or qualifying examination for Physics, Mathematics and Chemistry taken together ;
- (d)
higher percentage of marks in the subject Mathematics at HSC ;
- (e)
higher percentage of marks in the subject Physics at HSC ;
- (f)
higher percentage of marks in Aggregate at HSC.

(ii)
The merit list for the NRI/OCI/PIO and Foreign Students Candidates stated at rule 5(4) and 5(5) and Children of Indian Workers in Gulf Countries shall be prepared on the basis of the percentage of marks in the subjects Physics, Chemistry and Mathematics added together at Qualifying examination :

Provided that, in case of tie, the relative merit of Candidates shall be resolved in the following order of preference and the methodology as specified below,-

- (a)
higher percentage of marks in the subject Mathematics at HSC;
- (b)
higher percentage of marks in the subject Physics at HSC;
- (c)
higher percentage of marks in Aggregate at HSC.

(iii)
For Diploma and Bachelor of Science Candidates.-The merit list of Diploma and Bachelor of Science Candidates shall be prepared on the basis of percentage of marks obtained by the Candidate, on the basis of which Diploma/Degree is awarded by the examining authority :

Provided that, in case of tie, the relative merit of different candidates shall be resolved in the following order of preference and the methodology as specified below,-

- (a)
higher percentage of marks in SSC ;
- (b)
higher percentage of marks in Mathematics at SSC ;
- (c)
higher percentage of marks in Science at SSC ;
- (d)
higher percentage of marks in English at SSC.

(b)
For admission to Direct Second Year Engineering and Technology.- The merit list shall be prepared on the basis of marks obtained by the Candidate, on the basis of which Diploma/Degree is awarded by the examining authority :

Provided that, in case of tie, the relative merit of different candidates shall be resolved in the following order of preference and the methodology as specified below,-

- (a)
Higher percentage of marks in SSC ;
- (b)
Higher percentage of marks in Mathematics at SSC ;
- (c)
Higher percentage of marks in Science at SSC ;
- (d)

Higher percentage of marks in English at SSC.

(c)

For Admission to First Year Pharmacy.-(i) The merit list for the Candidates as per rule 5(1), 5(2), 5(3) and 5(6) of these rules shall be prepared on the basis of marks or score secured by the Candidate in the CET conducted by the Competent Authority or marks or score secured in any other examination conducted by the concerned appropriate authority for the purpose of admission to these Courses :

Provided that, in case of tie, the relative merit of different candidates shall be resolved in the following order of preference and the methodology as specified below,-

(a)

Higher marks in Mathematics or Biology at CET ;

(b)

Higher marks in Physics at CET ;

(c)

Higher percentage of marks in Physics, Mathematics or Biology and Chemistry added together at Board or qualifying examination ;

(d)

Higher percentage of marks in the subject Mathematics or Biology at HSC ;

(e)

Higher percentage of marks in the subject Physics at HSC ;

(f)

Higher percentage of marks in aggregate in HSC.

(ii)

The merit list for the NRI/OCI/PIO and Foreign Students Candidates stated at rule 5(4), 5(5) and Children of Indian workers in the Gulf countries shall be prepared on the basis of the percentage of marks in the subjects Physics, Chemistry and Mathematics/Biology added together at Qualifying examination :

Provided that, in case of tie, the relative merit of Candidates shall be resolved in the following order of preference and the methodology as specified below,-

(a)

Higher percentage of marks in the subject Mathematics or Biology at HSC ;

(b)

Higher percentage of marks in the subject Physics at HSC ;

(c)

Higher percentage of marks in Aggregate at HSC.

(d)

For Admission to Direct Second Year Pharmacy.- The merit list shall be prepared on the basis of marks obtained by the Candidate on the basis of which Diploma is awarded by the examining authority :

Provided that, in case of tie, the relative merit of different Candidates shall be resolved in the following order of preference and the methodology as specified below,-

(a)

Higher percentage of marks in Physics at HSC ;

(b)

Higher percentage of marks in Chemistry at HSC ;

(c)

Higher percentage of marks in SSC ;

(d)

Higher percentage of marks in Science at SSC.

(e)

First Year Hotel Management and Catering Technology.- (i) The merit list for the Candidates as per rule 5(1), 5(2), 5(3) and 5(6) of these rules shall be prepared on the basis of marks or score secured by the Candidate in the CET conducted by the Competent Authority or marks or score secured in any other examination conducted by the concerned appropriate authority for the purpose of admission to these Courses :

Provided that, in case of tie, the relative merit of different Candidates shall be resolved in the following order of preference and the methodology as specified below,-

(a)

Higher percentage of marks in HSC or its equivalent ;

(b)

Candidates having passed HSC with Science ;

(c)

Candidates having passed HSC with Home Science ;

(d)

Candidates having passed HSC with Minimum Competency Vocational Course ;

(e)

Candidates having passed HSC with Commerce.

(ii)

The merit list for the Candidates as per rule 5(4), 5(5) of these rules and Children of Indian workers in the Gulf countries shall be prepared on the basis of the Higher percentage of marks at HSC or its equivalent :

Provided that, in case of tie, the relative merit of Candidates shall be resolved in the following order of preference and the methodology as specified below,-

(a)

Candidates having passed HSC with Science ;

(b)

Candidates having passed HSC with Home Science ;

(c)

Candidates having passed HSC with Minimum Competency Vocational Course ;

(d)

Candidates having passed HSC with Commerce.

(f)

For admission to First Year Architecture. - (i) The merit list for the Candidates as per rule 5(1), 5(2), 5(3) and 5(6) of these rules shall be prepared on the basis of marks or score secured by the Candidate in the CET conducted by the Competent Authority or marks or score secured in any other examination conducted by the concerned appropriate authority and in the manner as may be prescribed by the appropriate authority :

Provided that, in case of tie, the relative merit of different Candidates shall be resolved in the following order of preference and the methodology as specified below,-

(a)

Higher marks in the CET ;

(b)

Higher percentage of marks in Mathematics at SSC ;

(c)

Higher percentage of aggregate marks in SSC.

(ii)

The merit list for the Candidates as per rule 5(4), 5(5) of these rules and Children of Indian workers in the Gulf countries shall be prepared on the basis of the percentage of marks at HSC or its equivalent :

Provided that, in case of tie, the relative merit of different Candidates shall be resolved in the following order of preference and the methodology as specified below.-

(a)

Higher percentage of marks in Mathematics at SSC ;

(b)

Higher percentage of aggregate marks in SSC.

9.

Centralised Admission Process (CAP).

(1)

The Unaided Private Professional Educational Institution shall admit Candidates through the Centralised Admission

Process (CAP) as referred in sub-section (3) of section 3 of the Act. The stages of CAP shall be as stated below,-

- (a)
Display or publishing of Information Brochure by the Competent Authority ;
- (b)
Filling Online Application Form by Candidate for participation in the Centralised Admission Process ;
- (c)
Document Verification at Facilitation Centre by the Candidate in person ;
- (d)
Display or publishing of provisional merit lists, submission of grievances, if any, and display or publishing of final merit lists ;
- (e)
Display of available Category wise Seats (Seat Matrix) for CAP Round I ;
- (f)
Filling up and Confirmation of Online Option Form having preferences of Courses and Institutions before CAP Round I. Candidates may fill in choices of Institutes and Courses in decreasing order of their preference as specified by Competent Authority. The option form once confirmed shall be considered for allotment in CAP Round I ;
- (g)
Display of Provisional Allotment of CAP Round I indicating allotted institute and Course.

(2)
During the CAP, before accepting the allotted seat a Candidate can opt to 'Freeze', 'Slide' or 'Float' the choice of academic program for subsequent round(s), if any, of seat allocation, as provided below,-

- (a)
Freeze.-Candidates accept the offered seat and they do not want to participate in any further rounds of seat allocation. Such Candidates will not be considered in subsequent rounds of admission ;
- (b)
Slide.- Candidates accept the offered seat and indicate that, if admission to the academic program of higher preference is offered within the same Institution, they will accept it. Such Candidates will be considered in subsequent rounds of admission ;
- (c)
Float.- Candidates accept the offered seat and indicate that, if admission to an academic program of higher preference in any Institution is offered, they will accept it. Else, they will continue with the currently accepted academic program. Such Candidates will be considered in subsequent rounds of admission ;
- (d)
For Candidates who choose the Float or Slide option, and secures a seat of his choice of higher preference, then it would automatically result in the forfeiture of the seat accepted by the Candidate in the earlier round ;
- (e)
Slide and Float options will not be available to a Candidate who is offered admission to his first choice.

(3)
Conduct of CAP Round II and III.- (a) The seats available for Round II and III shall be published on the website. The Candidates are allowed to fill in or edit the already filled online option form. The seats to be allotted during these rounds shall be subject to following conditions :-

- (i)
Before start of these rounds, the Candidates can change their seat acceptance option from Slide or Float to Freeze or vice-versa by submitting an application at Admission Reporting Centre (ARC) where he has confirmed his admission by paying the seat acceptance Fee ;
- (ii)
Candidates who have not been allotted any seat in any of the previous rounds or who did not participate (failure of filling option form) in previous round or those who have taken and canceled their admission in the earlier rounds or rejected seat and those who have selected Freeze option in earlier rounds but are desirous of changing it to Float or Slide are eligible to participate in these rounds ;
- (iii)

Candidates who have opted for Floator Slide and also applying for these rounds shall not fill in the allotted institution in their choice list, it will be added by the software at the end of the list. Once the upward allotment is made the earlier allotment automatically stands cancelled ;

(iv)

Slide or Float options are not available for the seats allotted in Round III.

(b)

Reporting and accepting the offered seat will be as per the allotment by the Candidate at Admission Reporting Centre.

(4)

Reporting and confirmation of admission.- After final CAP Round, the Candidate shall report to the institution finally allotted to him and confirm his admission in institution.

10.

CAP allotment stages and process of allotment.

- Allotment of seats under CAP shall be made in the following manner,-

(1)

Maharashtra State Candidature Candidate. - (a) The stages of computerised allotment are as follows :-

Stage-I:- For all the Candidates. - (a) All the Candidates (Open, Reserved, Male, Female) belonging to various categories shall be considered for allotment of seats as per their Inter-Se-Merit.

(b)

Backward Class Category Candidates shall be considered for allotment in Open Category seat by virtue of their Inter-Se-Merit or in their respective Category of reservation, if Open Category seats are not available at their merit.

(c)

SBC Category Candidates shall be considered for allotment in Open Category by virtue of their merit and in case of SBC Candidates who were in Backward Class prior to their inclusion in SBC Category shall be considered in their original Backward Class Category.

(d)

Persons with Disability Category Candidates shall be considered for allotment for the seats reserved for them otherwise in Open Category as per their Inter-Se-Merit if the seats reserved for them are not available at their merit.

(e)

Defence Category Candidates shall be considered for allotment for the seats reserved for them by virtue of their merit or in Open Category as per their Inter-Se-Merit if the seats reserved for them are not available at their merit.

(f)

If a seat is available for a candidate in more than one category, then the seat allotment shall be done in the sequence as given below :-

(i)

Seat for Ladies,

(ii)

Seat for persons with disability candidates,

(iii)

Seat for Defence,

Stage - II. - For allotment of seats reserved for Female to Male Candidates.-If the seats remain vacant after allotment to Female Candidates of the Backward Class Category or Open Category, such seats shall be allotted to the Male Candidates belonging to respective Backward Class or Open Category.

Stage - III. - For SBC Category Candidates.-If the Backward Class Category seats remain vacant, such seats shall be considered for allotment to the Candidates of SBC Category, limited to the extent of 2% seats.

Stage - IV. - For respective groups of Backward Class Category Candidates.-If the seats remain vacant in the respective group of following Categories, such seats shall be considered for allotment to the Candidates from within the respective group, -

Group 1. - (i) Scheduled Castes and Scheduled Castes converted to Buddhism (SC),

(ii)

Scheduled Tribes including those living outside the specified areas (ST).

Group 2. - (i) Vimukta Jatis/De- Notified Tribes (VJ/DT), NT(A),

(ii)

Nomadic Tribes 1 (NT-B).

Group 3. - (i) Nomadic Tribes 2 (NT-C),

(ii)

Nomadic Tribes 3 (NT-D),

(iii)

Other Backward Class (OBC).

Explanation. - For Group 1, if the seats remain vacant in ST Category due to non-availability of its Candidates, such seats shall be considered for allotment to the Candidates belonging to the SC Category or vice versa.

Stage - V. - For all Backward Class Category Candidates.- If the seats reserved for Backward Class Category Candidate remains vacant, such seats shall be considered for allotment to the Candidates of any Backward Class Category.

Stage - VI. - For Persons with Disability Candidates.- If the seats reserved for Persons with Disability remains vacant, such seats shall be considered for allotment to any Persons with Disability Candidates.

Stage - VII. - For all Candidates (without any type of Reservation).-The seats shall be considered for allotment to all the Candidates based on Inter-Se-Merit.

Stage - VIII. - For all Candidates (without any Candidature Type) -(i)The seats remaining vacant shall be allotted to the All India Candidates.

(ii)

In case of Direct Admission to Second Year (Lateral Entry) of Engineering and Technology:- If the seats remain vacant then such seats shall be considered for allotment to all the Diploma Candidates based on Inter-Se-Merit and further, if the seats remain vacant such seats shall be filled in on the basis of Inter-Se-Merit of the Bachelor of Science Candidates.

Stage - IX. - For First year Engineering admission to Diploma and Bachelor of Science Candidates.-After completion of stage VIII, if the seats remain vacant then such vacant seats shall be considered for allotment to the Diploma Candidates based on Inter-Se-Merit and further, if seats remain vacant such seats shall be considered for allotment to the Bachelor of Science Candidates on Inter-Se-Merit

(b)

In addition to above while allotting a seat for Direct Second Year of Engineering (Lateral Entry) and separate division, seat shall be allotted as follows, -

(i)

The seat of Degree Course shall be allotted to the Candidate having same sub-group Diploma Course;

(ii)

Vacant seats, if any, shall be allotted to the Candidate having the same main group Diploma Course.

(iii)

If further seats remain vacant, it shall be allotted to the Candidate having any other Diploma Course.

(c)

For seats reserved for Female Candidate, the procedure for reservation as given in Government Circular of General Administration Department No. RSV. 1012/CN-16/12/16A Dated 13th August 2014 shall be adopted.

(2)

All India Candidature Candidates. -The allotment to these seats shall be done through CAP on the basis of score of CET or as specified by the appropriate authority,-

(a)

First Year Engineering -JEE (Main) -Paper 1 and then if the seats remain vacant, on the basis of CET score;

(b)

First Year Pharmacy - CET Score;

(c)

First Year Architecture -National Aptitude Test in Architecture (NATA) score and H. Sc. marks;

(d)

First Year Hotel Management and Catering Technology - CET Score. All these seats are treated as "General Category" seats and no reservation is provided in these seats for Candidates of Backward Class Category, Ladies, Persons with Disability, and Defence, etc.

(3)

Minority Quota Seats.-The stages of computerised allotment are as follows,-

Stage - I. - The seats under minority quota in the minority institution linguistic or religious shall be allotted to the respective minority candidates.

Stage - II. - If the seats remain vacant, they shall be allotted to the Maharashtra State candidature Candidates.

Stage - III. - Further, if the seats remain vacant, they shall be allotted to the All India candidature Candidates.

(4)

For Jammu and Kashmir Migrant Candidature Candidates: The Supernumerary seats for Jammu and Kashmir Migrant Candidature candidates shall be allotted to the eligible candidates as in 5(6) on the basis of Inter-Se-Merit in the Entrance test conducted by the appropriate authority or in the manner as prescribed by the appropriate authority, further if seats remain vacant then the seats shall be allotted to the Jammu and Kashmir Migrant Candidature candidates on the basis of CET conducted by the Competent Authority.

11.

Allotment of seats by CAP Rounds I, II and III.

(1)

CAP Round I, II, and III shall be conducted by computerized allotment.

(2)

In CAP Round I.-

(a)

for Minority Institutions, the allotment shall be given to the candidates as per following preference,-

(i)

Stage I of sub-rule (3) of rule 10,

(ii)

Stages I and II of sub-rule (1) of rule 10,

(iii)

Sub-rule (2) of rule 10;

(b)

for other than Minority Institutions, the allotment shall be given to the candidates as per following preference :-

(i)

Stages I and II of sub-rule (1) of rule 10;

(ii)

Sub-rule (2) of rule 10 of these rules.

(3)

In CAP Round II.-

(a)

for Minority Institutions, the allotment shall be given to the candidates as per following preference :-

(i)

Stage I of sub-rule (3) of rule 10,

(ii)

Stages I to V of sub-rule (1) of rule 10,

(iii)

Stage II of sub-rule (3) of rule 10,

(iv)

Sub-rule (2) of rule 10,

(v)

Stage III of sub-rule (3) of rule 10 of these rules;

(b)

for other than Minority Institutions, the allotment shall be given to the candidates as per following preference :-

(i)

Stages I to V of sub-rule (1) of rule 10;

(ii)

Sub-rule (2) of rule 10 of these rules.

(4)

In CAP Round III.-

(a)

for Minority Institutions, the allotment shall be given to the candidates as per following preference :-

(i)

Stage I of sub-rule (3) of rule 10,

(ii)

Stages I to VIII of sub-rule (1) of rule 10,

(iii)

Stage II of sub-rule (3) of rule 10,

(iv)

Sub-rule (2) of rule 10,

(v)

Stage III of sub-rule (3) of rule 10,

(vi)

Stage IX of sub-rule (1) of rule 10 ;

(b)

for other than Minority Institutions, the allotment shall be given to the candidates as per following preference,-

(i)

Stages I to VIII of sub-rule (1) of rule 10;

(ii)

Sub-rule (2) of rule 10 of these rules;

(iii)

Stage IX of sub-rule (1) of rule 10 of these rules.

(5)

If the seat remains vacant due to non-allotment and non-reporting, such seat will be considered for allotment in subsequent round.

(6)

Every stage in CAP Round I, II and III shall be executed with HU and OHU tag and if the seats remain vacant then the same stage shall be executed without HU and OHU tag. If further seats remain vacant for any reason in 7(1), 7(2) and 7(3) of these rules they shall be considered for allotment to all the candidates as in 5(1), 5(2) and 5(3) irrespective of the seat type on the basis of Inter-Se-Merit.

12.

General provisions.

(a)

Allotment in CAP Rounds-I, II, and III of Home University Seats, other than Home University seats and State Level Seats will be carried out as per Inter-Se-Merit of Candidates having Maharashtra State Candidature. The seats will be allotted to Candidates as per Inter-Se- Merit, options filled and seats available at that point of time in the stage of CAP Round-I, II and III;

(b)

All Candidates eligible for a particular stage of allotment will be considered for allotment of a seat in that stage, even if they have been allotted or not allotted a seat in the previous stage;

(c)

During the allotment of any stage, the Candidate may get upward shift in the allotment with reference to the options filled by the Candidate according to availability of seats at that point of time;

(d)

There shall not be any reservation under different categories in an Unaided Professional Educational Institution, for allocation of seats stated in rule 7(2), 7(3), 7(4) and 7(5) of these rules;

(e)

All reserved Category Candidates (including SBC in their original Category) shall be considered for allotment in all

stages;

(f)

Due to upward shifts, the seats falling vacant shall be considered for allotment in further iterations of the same stage as per the provisions of that stage of allotment;

(g)

Allotment against the first available option in the order of preference filled in shall be retained as final allotment;

(h)

The allotment list displayed on website will show the provisional allotment offered to the Candidates. No personal communication or allotment letters in this regard shall be issued to the Candidates;

(i)

A Candidate who has been allotted a seat shall download the "Provisional Seat Allotment Letter". At the time of seat acceptance Candidate has to pay a demand draft in favour of Competent Authority at an Admission Reporting Centre. Seat will be confirmed by the Reporting Centre after verification of the original documents and ensuring that the Candidate meets all the eligibility norms. The centre in-charge shall issue the Online Receipt of acceptance;

(j)

The Seat Acceptance Fee shall be Rs. 5,000 for Candidates of General Category, VJ/DT, NT, SBC/OBC Category and Rs. 1,000 for SC, ST Category Candidates. This fee shall be transferred electronically to the bank account of the institution, after deducting Rs. 1,000 towards processing fee, if the Candidate reports to the institution after completion of CAP process which shall be adjusted towards fees to be paid by the Candidate to the institution. On cancellation of admission at ARC before reporting to the institution, the amount shall be refunded electronically to the candidate, after deduction of Rs. 1,000 towards processing charges;

(k)

Failure to report in person for seat acceptance will be considered as if the Candidate has rejected the offer;

(l)

Allotted Seat will be cancelled if, at any time, any of the document or certificate is found to be invalid or fraudulent and/or the Candidate does not meet the eligibility norms;

(m)

Candidates who want to reject the allocated seat can do so by not remitting the seat acceptance fee at the Reporting Centre. Candidates who reject allocated seat shall be considered for admission in subsequent rounds only if they submit fresh option form for subsequent round of admission as per schedule.

(n)

The seat acceptance fee paid by the candidate shall be forfeited if the Candidate fails to report to the institute after reporting to the ARC.

13.

Admissions in Institutional Quota and vacant seats after CAP.

- The Director or Principal of the institution shall carry out the admissions for these seats in the following manner.-

(a)

Admissions shall be made in a transparent manner and strictly as per the Inter-Se- Merit of the Candidates who have applied to Competent Authority for verification of documents and then to the Institution.

(b)

Information brochure or prospectus of the Institution which specifies rules of admission should be published well before the commencement of the process of admission. All the information in the brochures should also be displayed on the Institution's website.

(c)

Institution shall invite applications by notifying schedule of admission and the number of seats in each course to be filled by the institution, by advertisement on the website of the institution and also on the website of the Competent Authority by paying charges as decided by the Competent Authority.

(d)

Aspiring Candidates fulfilling the eligibility criteria as notified by the Government and specified by the appropriate authority, from time to time, shall apply to the Principal or Director of the respective institution for admission at the Institution level as provided in rule 3(4)(b) and shall be filled on the basis of Inter-Se-Merit prepared by following the

procedure specified in rule 8 (3) of these rules.

(e)

The institution shall display the Inter-Se-Merit lists of the Candidates to be filled in at the institution level, in the Institutional Quota and Supernumerary Quota of OCI/PIO, Foreign National, Children's of Indian workers in Gulf Countries along with the vacant seats after CAP, on the notice board and shall publish the same on the website of the institution.

(f)

The Minority or Non-Minority institution intending to surrender the Institutional Quota (in part or full) of specified courses to the CAP shall communicate two days before the display of seat matrix of each CAP Round and the same shall be allotted as per the rules of CAP.

(g)

All the admissions and cancellations shall be updated immediately through online system.

(h)

If any CAP seat remains or becomes vacant after the CAP Rounds, then the same shall be filled in by the Candidate from the same Category for which it was earmarked during the CAP. Further if the seats remain vacant then the seats shall be filled on the basis of Inter-Se- Merit of the applicants.

14.

Approval of Merit List and the Admitted Candidates List.

(1)

After completion of Admission process every Unaided Private Professional Educational Institution shall submit the Admission- approval proposal to the Director Technical Education and the Admission Regulating Authority in accordance with the provisions of sub-section (5) of the section 9 of the Act.

(2)

The Admission-approval proposal shall include the list of all Candidates admitted which shall have the Quota, Candidature Type, Reservation, Qualification Marks, etc., as well as, the required documents of the Candidates admitted at institution level.

(3)

If a minority institution fails to admit minimum fifty-one percent of its Sanctioned Intake from the persons belonging to the concerned minority, for a period of three consecutive years the Competent Authority shall inform the Department accordingly. The Department shall forward such cases along with observations to the Minorities Development Department as per the provisions of sub-section (2) of section 6 of the Act.

15.

Refund of fees after cancellation of admission by Institutions.

(a)

The Candidate shall apply online for cancellation and submit duly signed copy of system generated application for cancellation of admission to the institution.

(b)

After receiving duly signed admission cancellation request letter from the Candidate as per schedule published by the Competent Authority, the institution shall cancel the admission immediately and generate online acknowledgement of cancellation of admission through institution login and issue a signed copy to the Candidate.

(c)

The refund of fees on or before cut-off date of the admissions declared by the Competent Authority, shall be made within two days i.e. total fee minus the processing charges of Rs.1,000 or refund rule shall be as per the guidelines of the appropriate authorities or the State Government, as the case may be.

(d)

If the admission is cancelled after the cut-off date of the admission declared by the Competent Authority, there shall be no refund except the Security Deposit and Caution Money Deposit.

(e)

No institution, who has in its possession or custody, of any document in the form of certificates of degree, diploma or any other award or other document deposited with it by a person for the purpose of seeking admission in such institution, shall refuse to return such degree, certificate award or other document with a view to induce or compel such

person to pay any fee or fees in respect of any course or program of study which such person does not intend to pursue or avail any facility in such institution.

16.

Change of Course or Institution after First, Second or Third year.

(1)

The Candidate seeking for a change in course or shift after successfully completing the First Year of studies or both first and second semester examination in full or failed in one of the heads of passing will be allowed to do so in the same institution subject to the availability of seats and changes will be carried out based on the marks of First Year or First and Second Semester together. The Principal shall be responsible for ascertaining the eligibility of the Candidates as laid down by the concerned University for the course to which the Candidate is being transferred ;

(2)

Transfer of Candidates (Course and/or Institution) after one/two/three year shall be made in the following manner : -

(a)

The Candidate once admitted in first or second year shall not be eligible for transfer to any other institution during the same academic year;

(b)

The Candidate passing the first year (both first and second semester) or second year (both third and fourth semester) or third year (both fifth and sixth semester) examinations in full or failed in one of the heads of passing are considered as eligible for transfer of Institution or course, provided that for transfer after second year the candidate should have passed the first year, and for transfer after third year the candidate should have passed first and second year;

(c)

There shall be no transfer of students at any stage in any case from Unaided Institutions to Government or Government Aided, University Departments, University Managed Institutions. However, the Candidate from Government or Government Aided, University Departments, University Managed Institution may seek transfer to Unaided Educational Institution;

(d)

There shall be no transfer of students at any stage to Autonomous Institutions;

(e)

Transfer to Unaided Institutions.- The Principals of Unaided institutions shall consider the Candidates from other institutions for transfer with prior approval from the Directorate of Technical Education on submission of No Objection Certificate (NOC) from institution, Eligibility Certificate from University and Vacancy position. The Principal or Director shall ascertain the eligibility of Candidates as laid down by the concerned University for the course to which the Candidate is being transferred ;

(f)

No application without recommendation of the Principal of Institution shall be entertained by the Directorate of Technical Education ;

(g)

If the result of the University or Institution is not declared before the process of transfer, Candidates of that University or institution will lose claim on transfer ;

(3)

The Candidates admitted under Supernumerary Quota seats are not eligible for change of Course or Institution;

(4)

The candidates from the professional educational institutions which are outside the purview of the act shall be eligible for transfer to the unaided private professional educational institutions subject to the fulfilment of eligibility criterion and requirements stipulated under the provisions of sub section (1) of section 3 of the Act and the fulfilment of the conditions stated in sub-rule (2).

(5)

List of all such transfers shall be communicated by the Directorate of Technical Education to the office of the Admissions Regulating Authority for final approval.

I

(For First Year Admission)

(See rule 6 and 7)

A. Allocation of seats within Sanctioned Intake

Sr. No.

Type of Institution

No. of Seats- as % of Sanctioned Intake

CAP Seats

Institutional

Maharashtra State(M.S.) Candidates

Minority Quota

All India Seats

Quota (including 5% Quota forNRI, if applicable)

1

Unaided PrivateProfessional Educational Institutions(excluding minority institutions)

Autonomous - 65% (State Level)Non-

Autonomous-45.5 %for HU, 19.5 % for OHU

Nil

15%

20%

2

Unaided MinorityEducational Institutions

Autonomous* 100% of M.S.Seats\$ (State Level)Non- Autonomous*- 70%of M.S. Seats\$ for HU,30 % of M.S. Seats\$ OHU

Minimum 51%@

15% of Seatsunder CAP#

20%

CAP Seats = Sanctioned Intake - Institutional Quota

CAP seats excluding Minority Quota

\$ M.S. Seats = CAP Seats - (All India Seats + Minority Quota)

%- Percentage

* The seats excluding the Minority Quota and the Institutional Quota shall be filled in the stipulated percentage from the Maharashtra Candidature Candidate and All India Candidature Candidate.

@These are the minimum percentage of seats to be filled in the Minority Institution through CAP, this may be extended up to 100%. However, before commencement of the CAP, such Institution shall declare and inform to the Competent Authority, the maximum percentage of minority quota to be filled in their institution.The Institutional quota for Architecture and Pharmacy includes 5% quota for NRI and in case the seats remain unfilled then they shall be allotted to the candidates with All India Candidature.

B. Allocation of Supernumerary Seats. - (1) Jammu and Kashmir Migrant Candidates seats to be filled by the Competent Authority- The number of seats for this quota shall be as per the policy of the Government.

(2)

OCI/PIO, Foreign Students and the children of Indian Workers in Gulf Countries candidates to be filled by Institution - 15% of the Sanctioned Intake seats or as prescribed by the appropriate authority, from time to time (if applicable).

II

(For Direct Second Year Engineering and Technology and Pharmacy Admission)

(See rule 6 and 7)

The distribution of seats available shall be notified on the website before submission of option form of Centralised Admission Process (CAP).

(i)

Lateral Entry Seats : 20% of Sanctioned Intake for Engineering and Technology and 10% of sanctioned intake for Pharmacy, which will be over and above the Sanctioned Intake, Supernumerary to the approved Intake.

(ii)

Vacant Seats : The seats remaining vacant within Sanctioned Intake shall be the total intake of a particular branch less the admissions in the same branch/shift during previous year with due consideration of the changes of course or institution as given in Rule 16.

(iii)

Separate Division in Direct Second Year. - These seats shall be as sanctioned by All India Council for Technical Education.

Seat Distribution for Direct Second Year

Sr. No.

Type of Institution

No. of Seats-as % of Sanctioned Intake or

(Lateral Entry Seats + Vacant Seats) Level

Institute

General State

Minority Quota

All India Quota

Quota

1

Unaided Private Professional Educational Institutions (excluding minority)

100% of (Lateral Entry Seats + Vacant Seats)

Nil

Nil

Nil

2

Unaided Minority Educational Institutions

Separate Division : 65%

Nil

15%

20%

100% (Lateral Entry Seats+ Vacant Seats-

Minority Quota)

Minimum 51% @

Nil

Nil

Separate Division : 85% of Seats under CAP#

Minimum 51% @

15% of Seats under CAP#

20%

CAP Seats = Sanctioned Intake - Institutional Quota

CAP seats excluding Minority Quota

@ These are the minimum percentage of seats to be filled in the Minority Institution through CAP, this may be extended up to 100%. However before commencement of the CAP, such Institution shall declare and inform to the Competent Authority, the maximum percentage of minority quota to be filled in their institution.

Related AI tags, queries and research notes

Translation